

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jacqueline Levy(F)	Team: Team # 6	CCRB Case #: 201206163	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 05/12/2012 11:30 AM	Location of Incident: Smith Street and President Street	18 Mo. SOL 11/12/2013	Precinct: 76		
Date/Time CV Reported Sat, 05/12/2012 2:22 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Sat, 05/12/2012 2:22 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Alberto Angilletta	07001	917233	NARCBBS
2. DT3 Christopher Greiner	01425	930271	NARCBBS

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Alberto Angilletta	Abuse: Det. Alberto Angilletta stopped § 87(2)(b)	A . Substantiated
B . DT3 Christopher Greiner	Abuse: Det. Christopher Greiner stopped § 87(2)(b)	B . Substantiated
C . DT3 Alberto Angilletta	Discourtesy: Det. Alberto Angilletta spoke obscenely and/or rudely to § 87(2)(b)	C . Substantiated
D . DT3 Christopher Greiner	Discourtesy: Det. Christopher Greiner spoke obscenely and/or rudely to § 87(2)(b)	D . Substantiated
E . DT3 Alberto Angilletta	Off. Language: Det. Alberto Angilletta made remarks to § 87(2)(b) based upon race.	E . Substantiated
F . DT3 Alberto Angilletta	Abuse: Det. Alberto Angilletta searched § 87(2)(b)	F . Substantiated
G . DT3 Alberto Angilletta	Abuse: Det. Alberto Angilletta frisked § 87(2)(b)	G . Substantiated
H . DT3 Christopher Greiner	Abuse: Det. Christopher Greiner refused to provide his name and shield number to § 87(2)(b)	H . Substantiated
I . DT3 Alberto Angilletta	Abuse: Det. Alberto Angilletta refused to provide his name and shield number to § 87(2)(b)	I . Substantiated
J . DT3 Alberto Angilletta	Abuse: Det. Alberto Angilletta threatened § 87(2)(b) with the use of force.	J . Substantiated

Case Summary

On May 12, 2012, § 87(2)(b) filed this complaint with the CCRB via the Call Processing System (encl. 4A-B). On May 12, 2012, at 11:30 a.m., § 87(2)(b) observed Det. Alberto Angilletta and Det. Christopher Greiner of Brooklyn South Narcotics in the vicinity of President Street and Smith Street in Brooklyn. The following allegations resulted:

- **Allegation A – Abuse of Authority: Det. Alberto Angilletta stopped** § 87(2)(b)
- **Allegation B – Abuse of Authority: Det. Christopher Greiner stopped** § 87(2)(b)
- **Allegation C – Discourtesy: Det. Alberto Angilletta spoke obscenely and/or rudely to** § 87(2)(b)
- **Allegation D – Discourtesy: Det. Christopher Greiner spoke obscenely and/or rudely to** § 87(2)(b)
- **Allegation E – Offensive Language: Det. Alberto Angilletta made remarks to** § 87(2)(b) **based upon race.**
- **Allegation F – Abuse of Authority: Det. Alberto Angilletta searched** § 87(2)(b)
- **Allegation G – Abuse of Authority: Det. Alberto Angilletta frisked** § 87(2)(b)
- **Allegation H – Abuse of Authority: Det. Christopher Greiner refused to provide his name and shield number to** § 87(2)(b)
- **Allegation I – Abuse of Authority: Det. Alberto Angilletta refused to provide his name and shield number to** § 87(2)(b)
- **Allegation J – Abuse of Authority: Det. Alberto Angilletta threatened** § 87(2)(b) **with the use of force.** § 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A, B, C, D, E, F, G, H, I, and J** be substantiated.

Results of Investigation

Civilian Statement

Complainant/Victim: § 87(2)(b)

- § 87(2)(b) § 87(2)(b) *at the time of the incident, is a Hispanic male § 87(2)(b), and has graying black hair and brown eyes. He had a goatee sans moustache and tattoos on his arms.* § 87(2)(b)

CCRB Testimony

On May 17, 2012, § 87(2)(b) was interviewed at the CCRB (encl. 5A-E).

On May 12, 2012, at 11:30 a.m., § 87(2)(b) was walking home from his drug program and was in the vicinity of Smith Street and Carroll Street in Brooklyn. He was wearing a blue t-shirt, gray jeans, and sneakers. His cell phone and ID were in his right front pants pocket, some money and business cards were in his left front pocket, and a newspaper was in his back pocket. He was carrying a drawstring bag, which contained a newspaper and a notebook, on his back. He did not have any contraband on him and had not consumed any drugs or alcohol. § 87(2)(b) was walking at a quick pace.

After five to eight minutes, § 87(2)(b) walked by two officers who were in a gray minivan and in plainclothes, identified through investigation as Det. Alberto Angilletta and Det. Christopher Greiner of Brooklyn South Narcotics. They said, “Good morning,” in a mocking manner. § 87(2)(b)

§ 87(2)(b) said, “Good morning,” and kept walking.

Det. Angilletta and Det. Greiner approached § 87(2)(b) when he was on Smith Street at President Street. Det. Angilletta pushed § 87(2)(b) in the shoulder against the wall between two glass windows. Det. Angilletta and Det. Greiner both said, “Shut the fuck up and sit down.” § 87(2)(b) asked what he had done. Det. Angilletta repeatedly said, “Shut the fuck up and sit down.” Det. Greiner said, “You heard what he said. Shut the fuck up.” Det. Angilletta said, “Shut the fuck up, you fucking Spic.” § 87(2)(b) repeatedly said that he did not have anything on him. Det. Angilletta was close enough that he was spitting in § 87(2)(b)'s face. The officers asked, “Who was that guy you were talking to?” § 87(2)(b) had not spoken to anyone since leaving the program and told the officers that he did not know what they were talking about. The officers also asked where § 87(2)(b) was coming from.

Det. Angilletta told § 87(2)(b) to empty his pockets and § 87(2)(b) complied and put the contents of his pockets on the ground. Det. Angilletta said, “That’s all?” Det. Angilletta stood § 87(2)(b) up and patted down his pockets and legs. § 87(2)(b) said, “Do you want to search my bag?” Det. Angilletta opened § 87(2)(b)'s bag and looked through it. Det. Greiner looked at § 87(2)(b)'s ID but § 87(2)(b) did not see either officer write down his information. When § 87(2)(b) asked what was happening, the officers told him that they were conducting an investigation. § 87(2)(b) asked Det. Greiner for Det. Angilletta’s and Det. Greiner’s name and badge number; he said, “You know what, I would like to have your badge number and his name and yours.” Det. Angilletta said, “Shut the fuck up and keep moving before I fuck you up.” § 87(2)(b) estimated that the incident lasted 20 minutes.

§ 87(2)(b) described Det. Angilletta as an Italian male who stood 5’8” tall, had a large stomach, dark hair, and light brown eyes, and was in his late 20s to early 30s. He described Det. Greiner as a white male, who stood 5’9” to 5’11” tall, weighed 180 to 200 pounds with a bulky build, had blond hair and light blue or gray eyes, and was in his late 20s to early 30s.

NYPD Statements

Subject Officer: DET ALBERTO ANGILLETTA

- Det. Angilletta, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has brown hair and brown eyes.
- On May 12, 2012, Det. Angilletta worked from 5:27 a.m. to 2:00 p.m. He was assigned to Brooklyn South Narcotics team 1 with Det. Christopher Greiner. They were in plainclothes and assigned to a gray minivan.

Memo Book (encl. 6A-B)

Det. Angilletta did not have any entries regarding this incident. At 8:35 a.m., there were four people under arrest at 3rd Place and Smith Street. At 12:00 p.m., he was at the 76th Precinct stationhouse.

CCRB Testimony (encl. 7A-C)

On July 25, 2012, Det. Angilletta was interviewed at the CCRB.

Det. Angilletta did not recall this incident and did not recognize the photo of § 87(2)(b) taken at the CCRB on May 17, 2012. Det. Angilletta stated that he did not recall stopping any individual on May 12, 2012, who was not subsequently arrested and later amended his statement to say that he did not recall whether he interacted with any civilian that was not arrested. Det. Angilletta made four arrests at 8:35 a.m., at 3rd Place and Smith Street, during the course of an observation operation but the prisoners were not in his vehicle.

He did not recall whether he spoke to any civilian about them having met with someone coming

from a methadone clinic, two of which are located Court Street and Hamilton Street, approximately nine blocks south of the location, and 8th Street and 2nd Avenue, approximately seven blocks south and two blocks east of the location. Det. Angilletta did not recall whether his team was doing observations in the area of those clinics. At no point did Det. Angilletta call any civilian a “Spic,” say, “Shut the fuck up,” or use any profanities.

Subject Officer: DET CHRISTOPHER GREINER

- *Det. Greiner, § 87(2)(b) at the time of the incident, is a white male § 87(2)(b), and has brown hair and blue eyes.*
- *On May 12, 2012, Det. Greiner worked from 5:27 a.m. to 2:00 p.m. He was assigned to the chase car with Det. Alberto Angilletta. He was in plainclothes and assigned to a gray minivan.*

Memo Book (encl. 8A-B)

Det. Greiner has no memo book entries regarding this incident. At 8:35 a.m., there were four people under arrest at 3rd Place and Smith Street.

CCRB Testimony (encl. 9A-B)

On September 6, 2012, Det. Greiner was interviewed at the CCRB. § 87(2)(g)

Det. Greiner did not recall this incident and did not recognize a photo of § 87(2)(b). Other than the individuals Det. Greiner arrested at 8:35 a.m. at Smith Street and 3rd Place, two blocks south of the incident location – Smith Street and President Street, he did not stop or interact with any civilians. He was doing observations in the Red Hook Houses, which were noted to be about nine blocks south of the incident location. He was in the vicinity of a methadone clinic at Hamilton Avenue and Court Street, which is a few blocks from the Red Hook Houses but did not talk to any civilian about having met with someone at the clinic.

Det. Greiner denied using any profanities or calling anyone a “Spic” on May 12, 2012, and stated that he did not hear Det. Angilletta do so. Det. Angilletta did not threaten to “fuck [anyone] up.” Neither he nor Det. Angilletta frisked or searched any individual that was not arrested. Det. Greiner did not recall any civilian requesting his or Det. Angilletta’s badge number.

NYPD Documents

Fleet Services Search (encl. 10)

Fleet Services noted that there were no gray unmarked vehicles assigned to the 76th Precinct.

Brooklyn South Narcotics Tactical Plan (encl. 11)

The tactical plan indicates that Det. Angilletta and Det. Greiner were assigned to a gray Dodge and that the other two vehicles in use were red. The team was operating in the vicinity of 3rd Place and Wyckoff Street, 3rd Place and Nevins Street, Baltic Street and Bond Street, and 5th Avenue and 10th Street.

76th Precinct Stop and Frisk Log (encl. 12)

There were no stop and frisk reports prepared in regards to this incident.

Other Evidence

Maps (encl. 3A-D)

Smith Street and President Street is located within a few block radius of 3rd Place and Smith Street, where Det. Angilletta and Det. Greiner made arrests, and Baltic Street and Bond Street, a set

up location for the Brooklyn South Narcotics team, and 191 Union Street, the 76th Precinct stationhouse.

Status of Civil Proceedings

- § 87(2)(b) has not filed a Notice of Claim with the City of New York with regard to the incident as of September 24, 2012, more than 90 days after the incident (encl. 15).

Civilian Criminal History

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian CCRB History

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 2).

Subject Officers CCRB History

- Det. Angilletta has been a member of the service for 16 years and there are three substantiated CCRB allegations against him (encl. 1A):
 - In case number 200703375, allegations of a refusal to provide name or shield number, search of person, and question were substantiated; NYPD declined to prosecute.
- Det. Greiner has been a member of the service for 10 years and there are no substantiated CCRB allegations against him (encl. 1B-C).

Conclusion

Identification of Subject Officers

§ 87(2)(b) described Det. Angilletta as an Italian male who stood 5'8" tall, had a large stomach, dark hair, and light brown eyes, and was in his late 20s to early 30s. He described Det. Greiner as a white male, who stood 5'9" to 5'11" tall, weighed 180 to 200 pounds with a bulky build, had blond hair and light blue or gray eyes, and was in his late 20s to early 30s. He stated that these officers were in a gray minivan.

Det. Angilletta described himself as a white male § 87(2)(b), has brown hair and brown eyes and was § 87(2)(b) at the time of the incident. Det. Greiner described himself as a white male who stands § 87(2)(b), has brown hair and blue eyes, and was § 87(2)(b) at the time of the incident.

A search conducted by Fleet Services of vehicles in service by the 76th Precinct at the time of occurrence revealed that there were no gray unmarked vehicles. The tactical plan for Brooklyn South Narcotics notes that Det. Angilletta and Det. Greiner were in a gray vehicle, which they identified as being a minivan. Det. Angilletta and Det. Greiner noted that they made arrests at a location two blocks south of the incident location and the Brooklyn South Narcotics tactical plan shows that they were in the general vicinity of the incident. § 87(2)(g)
[REDACTED]
[REDACTED]
[REDACTED]

Investigation Findings and Recommendations

Allegations Not Pleaded

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)

Allegation A – Abuse of Authority: Det. Alberto Angilletta stopped § 87(2)(b)

Allegation B – Abuse of Authority: Det. Christopher Greiner stopped § 87(2)(b)

Allegation C – Discourtesy: Det. Alberto Angilletta spoke obscenely and/or rudely to

§ 87(2)(b)

Allegation D – Discourtesy: Det. Christopher Greiner spoke obscenely and/or rudely to

§ 87(2)(b)

Allegation E – Offensive Language: Det. Alberto Angilletta made remarks to § 87(2)(b)

based upon race.

Allegation F – Abuse of Authority: Det. Alberto Angilletta searched § 87(2)(b)

Allegation G – Abuse of Authority: Det. Alberto Angilletta frisked § 87(2)(b)

Allegation H – Abuse of Authority: Det. Christopher Greiner refused to provide his name and shield number to § 87(2)(b)

Allegation I – Abuse of Authority: Det. Alberto Angilletta refused to provide his name and shield number to § 87(2)(b)

Allegation J – Abuse of Authority: Det. Alberto Angilletta threatened § 87(2)(b) with the use of force.

§ 87(2)(b) alleged that Det. Angilletta and Det. Greiner stopped him and used profanities toward him. He alleged that Det. Angilletta searched his bag and frisked him and called him a “Spic.” He also alleged that Det. Angilletta threatened to “fuck [him] up” when he requested their names and shield numbers and that Det. Greiner and Det. Angilletta left without providing their names or shield numbers.

Neither Det. Angilletta nor Det. Greiner recalled interacting with § 87(2)(b) nor did either recognize a photo of § 87(2)(b). They further denied using profanities or offensive language, or threatening anyone with the use of force. Det. Greiner denied frisking and searching any individual who was not arrested, while Det. Angilletta stated that he did not recall interacting with any individual who was not arrested. Det. Greiner also specifically denied that any civilian requested their names or shield numbers.

When a police officer has reasonable suspicion that an individual has committed, is committing or is about to commit a crime, the officer may stop that individual. An officer is authorized to frisk an individual only if the officer reasonably suspects that the individual threatens physical injury to the officer by virtue of being armed. *People v. Debour*, 40 N.Y.2d.210 (1976)

Patrol Guide Procedure 203-09 requires officers to be courteous and respectful, and provide their rank, name, and shield number when requested. Patrol Guide Procedure 203-10 instructs officers to avoid using discourteous or disrespectful remarks regarding another person’s ethnicity or race. Finally, officers are required to use minimum necessary force as per Patrol Guide Procedure 203-11.

§ 87(2)(g)

§ 87(2)(b). Both officers were interviewed soon after the incident, two and a half to three and a half months after the incident, but provided no context or explanation for their actions. § 87(2)(g)

It is therefore recommended that **allegations A, B, C, D, E, F, G, H, I, and J be substantiated.**

Investigator: _____ Jacqueline Levy _____
Signature Print Date

Supervisor: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date

Reviewer: _____
 Title/Signature Print Date